

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUPP025266: CHRISTOPHER JON DREGNE vs AMERICAN LANDSCAPING
SERVICES INC, et al.**

**09/14/2026 in Department 42
Motion for Summary Judgment**

Motion: Defendant American Landscaping Services, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication of Issues (*Opposed*)

Tentative Ruling

Defendant American Landscaping Services, Inc. dba American Nurseries' motion for summary judgment is DENIED.

Defendant's alternative motion for summary adjudication is DENIED as to Plaintiff Christopher Jon Dregne's First Cause of Action for General Negligence and Second Cause of Action for Premises Liability.

Request for judicial notice

Defendant's request for judicial notice of Plaintiff's operative Complaint is GRANTED pursuant to Evidence Code section 452, subdivision (d), as to the existence and contents of the court record. The Court does not take judicial notice of the truth of disputed factual allegations in the Complaint.

Defendant's UMFs

UMF No. 1: UNDISPUTED; ESTABLISHED.

UMF No. 2: UNDISPUTED; ESTABLISHED.

UMF No. 3: DISPUTED; NOT ESTABLISHED as phrased. Plaintiff lacks direct personal knowledge of who or what made the walkway wet, but he identifies the wet walkway as the condition on which he slipped and offers circumstantial evidence concerning the source of the water.

UMF No. 4: DISPUTED in part; ESTABLISHED in part. It is UNDISPUTED and ESTABLISHED that Plaintiff was wearing flip-flops. It is DISPUTED and NOT ESTABLISHED, that he was walking his dog at the time of the incident.

UMF No. 5: UNDISPUTED; ESTABLISHED.

UMF No. 6: UNDISPUTED; ESTABLISHED.

2024CUPP025266: CHRISTOPHER JON DREGNE vs AMERICAN LANDSCAPING SERVICES INC, et al.

UMF No. 7: DISPUTED in part; ESTABLISHED in part. It is ESTABLISHED that ALS did not own the subject property. It is NOT ESTABLISHED that ALS exercised no control relevant to the alleged condition. The Landscape Maintenance Service Agreement assigns ALS specific responsibilities concerning irrigation, landscaping, and hard surfaces, including walkways.

UMF No. 8: UNDISPUTED; ESTABLISHED. The evidence does not support a finding that ALS painted or resurfaced the subject walkway.

UMF No. 9: UNDISPUTED; ESTABLISHED.

UMF No. 10: UNDISPUTED; ESTABLISHED only to the stated absence of direct observation. Plaintiff did not personally see the ALS landscaper water the area immediately adjacent to the ramp, get water onto the ramp, or otherwise create the wet condition. This fact does not resolve whether ALS may be identified as the source through circumstantial evidence.

UMF No. 11: DISPUTED; NOT ESTABLISHED as phrased. The Agreement assigns ALS responsibilities over irrigation management and weekly work on hard surfaces and walkways. Thus, the broader assertion that ALS did not control, inspect, monitor, maintain, or otherwise have responsibility concerning the subject location is not established.

UMF No. 12: DISPUTED; NOT ESTABLISHED. Whether ALS created or contributed to the wet condition is a material factual issue on which Plaintiff relies on circumstantial evidence.

Plaintiff's AMFs

AMF No. 1: UNDISPUTED; ESTABLISHED.

AMF No. 2: UNDISPUTED; ESTABLISHED, but of limited materiality.

AMF No. 3: UNDISPUTED; ESTABLISHED, but of limited materiality.

AMF No. 4: UNDISPUTED; ESTABLISHED only insofar as Plaintiff testified that his feet slipped and he fell. The fact does not establish the source of the wetness or attribute causation to ALS.

AMF No. 5: DISPUTED; ESTABLISHED in part. The evidence supports that Plaintiff observed the walkway to be wet after the fall, observed marks on the walkway, and photographed the area. The characterization that the marks were made by "other individuals" is NOT ESTABLISHED by competent personal-knowledge evidence.

AMF No. 6: UNDISPUTED; ESTABLISHED as to Plaintiff's observations only. Plaintiff observed an ALS landscaping truck, a landscaper holding a hose in a garden bed across from where he fell, and a puddle near a garden bed. These observations do not themselves establish that ALS caused the wet walkway, but they may be considered with the other circumstantial evidence.

2024CUPP025266: CHRISTOPHER JON DREGNE vs AMERICAN LANDSCAPING SERVICES INC, et al.

AMF No. 7: UNDISPUTED; ESTABLISHED. Plaintiff admits that he did not observe the landscaper watering the precise area where he fell and does not otherwise know how the walkway became wet.

AMF No. 8: UNDISPUTED; ESTABLISHED. Plaintiff testified that he did not observe any sign, notice, or other warning that the sidewalk was wet.

AMF No. 9: UNDISPUTED; ESTABLISHED only that Plaintiff sought medical treatment after the incident; of limited materiality to this motion.

AMF No. 10: DISPUTED; ESTABLISHED in part. The Agreement assigns ALS landscaping and irrigation responsibilities and weekly duties concerning hard surfaces and walkways. The fact is not established to the extent it is intended to show that ALS owned the property or possessed unrestricted control over the walkway.

AMF No. 11: DISPUTED; ESTABLISHED IN PART. The Agreement requires specified reporting and communication concerning irrigation problems, possible liability situations, and problem areas, together with periodic inspections. The Agreement controls over any broader characterization of ALS's obligations.

First Cause of Action (General Negligence)

Summary adjudication is DENIED.

The record does not establish, as a matter of law, that ALS owed no duty relevant to the alleged wet condition, that ALS did not create or contribute to that condition, or that ALS's conduct could not have been a substantial factor in Plaintiff's fall.

ALS did not own the property, and Plaintiff did not see an ALS employee put water on the precise portion of walkway where he fell. But the Agreement places ALS's personnel under ALS's exclusive supervision and control and assigns ALS responsibility to operate and manage the irrigation system, avoid water waste from runoff, monitor over-watering, and perform specified weekly work on walkways and other hard surfaces. Plaintiff's evidence further shows that the day was sunny, the walkway was wet after his fall, a puddle was adjacent to a garden bed, an ALS landscaper with a hose was in the immediate area, and an ALS landscaping truck was present. (Dregne Decl. ¶¶ 3-7; Allred Decl. ¶¶ 3-5.)

ALS offers no affirmative evidence that its employee did not place water on the walkway. It relies on an absence of evidence by Plaintiff. Viewed in the light most favorable to Plaintiff, the established facts permit a reasonable inference that landscaping or irrigation activity for which ALS was responsible created or contributed to the wet condition. Plaintiff's lack of direct eyewitness knowledge of the water's source is relevant, but does not require the Court to reject a reasonable circumstantial inference. The competing inference urged by ALS (that the water came from some unidentified other source) cannot be weighed against Plaintiff's inference on summary judgment. (*Constance B. v. State of California* (1986) 178 Cal.App.3d 200, 211; *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.)

Nor does ALS's lack-of-notice argument dispose of the negligence claim. Plaintiff's surviving theory is that ALS itself created or contributed to the wet condition through landscaping or irrigation activity. If the trier of fact accepts this theory, separate proof that ALS previously received notice of a condition created by its own conduct is unnecessary. The evidence does not establish ALS's creation of the condition as a matter of law, but is sufficient to create a triable issue.

Second Cause of Action (Premises Liability)

Summary adjudication is DENIED.

Premises liability is a form of negligence, and responsibility ordinarily follows possession or control rather than title alone. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1158-1162.)

ALS has established that it did not own the property, but has not unequivocally established the absence of any right of control over the alleged agency of harm. Its own contract gives it operational responsibility for irrigation and specific maintenance responsibilities involving hard surfaces and walkways. Whether that limited contractual control encompassed the wet condition alleged here, and whether ALS exercised reasonable care in performing those responsibilities, present factual questions on this record.

The record also does not establish as a matter of law that the wet, painted, sloping walkway was not dangerous or that any danger was so open and obvious as to eliminate ALS's potential liability. Plaintiff testified that he did not notice an unusual condition before the fall and observed the wetness afterward. (Dregne Decl. ¶¶ 4-6; Dregne Depo. 27:8-28:15.) The photographs depict the walkway, surrounding landscaping, wet or darkened areas of pavement, marks on the walking surface, a hose, and landscaping activity in the vicinity. Whether the condition was reasonably apparent and unreasonably slippery under the circumstances is not resolved by ALS's general assertion that outdoor water is commonplace.

Moreover, even an obvious condition does not invariably eliminate all duty. *Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184-1186, reversed summary judgment in a slip-and-fall case involving water on outdoor pavement and explained that obviousness may eliminate a duty to warn but does not necessarily eliminate a duty to remedy a danger when injury remains foreseeable. Plaintiff's route here was a pedestrian walkway adjacent to the leasing office, and his evidence is that he used it while returning from guest parking after Essex required him to move his vehicle. (Dregne Decl. ¶¶ 3-5.) ALS therefore has not established a complete open-and-obvious defense as a matter of law.

It is undisputed that ALS did not paint or resurface the walkway. This defeats any contention that ALS itself created the alleged paint or resurfacing defect. This does not dispose of the premises-liability cause of action, however, because the Complaint also alleges that Defendants negligently hosed down or wet the walkway and failed to maintain or protect against a wet, slick condition. (Compl. ¶¶ 16, 20, 26.) Summary adjudication cannot be granted merely to eliminate

**2024CUPP025266: CHRISTOPHER JON DREGNE vs AMERICAN LANDSCAPING
SERVICES INC, et al.**

one factual theory when a triable theory remains within the same cause of action. (CCP § 437c(f)(1).)

Defendant American Landscaping Services, Inc. shall give notice.